

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

RDD FREIGHT INT'L, INC., *Claimant*

v.

COSCO SHIPPING (NORTH AMERICA) INC., *Respondent*.

DOCKET NO. 2054(I)

Served: July 9, 2026

ORDER OF: Jamie L. MENDELSON, *Small Claims Officer*.

INITIAL DECISION DISMISSING PROCEEDING¹

On March 20, 2026, the Secretary of the Federal Maritime Commission (“Commission”) issued a notice that Claimant, RDD Freight Int’l, Inc., filed a small claim for informal adjudication (“Claim”) against Respondent, COSCO Shipping (North America) Inc. The Secretary noted that the informal complaint was mailed to Respondent the same day and Respondent was required to file a response to the complaint and indicate whether it consents to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission’s Rules of Practice and Procedure (46 C.F.R. §§ 502.301-305).

The Office of Administrative Law Judges did not receive a response to the Claim from Respondent. However, Claimant sent an *ex parte* email to the Office of the Secretary on April 13, 2026, stating that “Today we received the payment from COSCO so we can have this case closed. Please see the attached check copy for your record.”

On June 15, 2026, the Chief Administrative Law Judge issued a Notice of Assignment of Small Claims Officer (“Notice”), appointing the undersigned to serve as the Small Claims Officer in this proceeding. A copy of Claimant’s April 13, 2026, email was sent to Respondent along with the Notice. The Notice instructed the parties to provide a copy of any settlement agreement or a joint status report describing any agreements made to resolve this proceeding.

On June 29, 2026, Claimant submitted a Status Report by email, copying Respondent. Claimant’s Status Report states that “[t]he dispute subject to this proceeding has been resolved,” “Respondent ... has paid Claimant the amount claimed in this proceeding,” and “Claimant confirms that it has received the payment and considers its claim fully satisfied.” Claimant’s Status Report further states: “As the party’s dispute has been resolved and no further relief is sought, Claimant respectfully requests that the Federal Maritime Commission close this proceeding and dismiss the claim.” Claimant did not provide a copy of a settlement agreement

¹ Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

and did not indicate that a written settlement agreement was executed. Respondent has not provided a status report or otherwise responded to the Notice.

“Settlement is strongly encouraged in administrative proceedings and is embodied in the Administrative Procedure Act (APA) and in the Commission’s precedent and rules.” *SSA Terminals, LLC v. City of Oakland*, Dkt. No. 09-08, 2013 WL 9808691 (FMC Sep. 3, 2013) (citing *Behring International, Inc.*, 20 S.R.R. 1025, 1032-1033 (ALJ 1981); *Pennsylvania Gas & Water Co. v. Federal Power Comm’n*, 463 F.2d 1242, 1247 (D.C. Cir. 1972)). The Commission favors settlements that “result in a savings of time for the parties, the lawyers, and the courts and it is thus advantageous to judicial administration.” *Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 18 S.R.R. 1085, 1092 (1978). While “[t]he Commission has a long-standing history of reviewing settlement agreements to assure that they accord with law and public policy,” *SSA Terminals*, 2013 WL 9808691, there is no indication that the parties in this case have executed a written settlement agreement. Rather, Claimant states that it received the payment it sought in its Claim and thus requests that its Claim be dismissed. There is no indication that the resolution of the dispute violated any law or policy, or was the result of any fraud, duress, undue influence, mistake, or other defects.

Accordingly, it is hereby **ORDERED** that this proceeding be **DISMISSED WITHOUT PREJUDICE**.

SO ORDERED

Jamie L.

Mendelson -S

Digitally signed by
Jamie L. Mendelson -S

Jamie L. Mendelson
Small Claims Officer